
Case	Title / Nature of Case
2:00 PM LINE 1	
22-CIV-02749	TERRY CARL RIECKEN VS. MATHEW JOEL BRADSHAW, ET AL
TERRY CARL RIECKEN MATHEW JOEL BRADSHAW	GINGER L SOTELO RICHARD J. ZUROMSKI

Plaintiff's Petition to Confirm Arbitration Award

TENTATIVE RULING:

Initially, the court notes that petitioner has not provided the correct address for the hearing. Department 28 is located at the Central Courthouse, Courtroom I, 800 North Humboldt Street, San Mateo, California 94401. (*See* Cal. Rules of Court, Rule 3.1110 [the Notice “must specify” the location of the hearing].)

The unopposed Petition to Confirm Contractual Arbitration Award brought by petitioner Terry Carl Riecken, dba Construction Management and Development is **GRANTED**, as to the amended award, minus the partial credit. The court will award judgment to petitioner against Mathew Joel Bradshaw, dba Bradshaw Construction in the amount of \$454,520.78.

A. Background

Petitioner states that it performed construction work as a subcontractor with respondent Terreno 9070 Junction, LLC, Mathew Joel Bradshaw, dba Bradshaw Construction to perform work at the property of defendant Raison D’Etre Bakery, LLC, for which it was not paid.

On May 19, 2026, petitioner filed a Petition to Confirm Contractual Arbitration Award asking the court to confirm an Amended Arbitration Award (see Proposed Order, filed on May 19, 2026, exh. A) against Bradshaw in the amount of \$828,351.72 inclusive of attorney’s fees and costs, plus pre-judgment interest at the rate of ten percent per year from April 24, 2026, through the date of entry of judgment, and to enter judgment in its favor and against respondent. The form petition incorporates the parties’ arbitration agreement (Petition, ¶ 4, Attachment 4(b), at p. 8 [Section 13, Dispute Resolution]); states that the arbitration was conducted on December 8-10 and 15, 2025, in Oakland, California (*id.*, ¶ 7); and attaches the Amended Arbitration Award of May 5, 2026, and the original award of April 24, 2026. (*Id.*, ¶ 8, & Attachment 8(c).)

B. Governing Law

An arbitration award is not a judgment, and it has no legal effect until a court confirms the award. “An award that has not been confirmed or vacated has the same force and effect as a contract in writing between the parties to the arbitration.” (Code Civ. Proc., § 1287.6.) “If an

award is confirmed, judgment shall be entered in conformity therewith,” and the judgment has the same force and effect as a judgment in the instant action. (*Id.*, § 1287.4.)

After an award has been made, any party to the arbitration “may petition the court to confirm, correct or vacate” it. (Code Civ. Proc., § 1285.) “A petition to confirm an award shall be served and filed not later than four years after the date of service of a signed copy of the award on the petitioner.” (*Id.*, § 1288.)

“The allegations of a petition are deemed to be admitted by a respondent duly served therewith unless a response is duly served and filed.” (Code Civ. Proc., § 1290.) The response must be served and filed within ten (10) days after service of the petition or within 30 days if the respondent was served outside California. (*Id.*, § 1290.6.)

C. The Motion to Confirm the Award is Granted

Petitioner and respondent entered a written agreement which included an arbitration provision. (Petition, ¶ 4, Attachment 4(b) at p. 8 [Section 13, Dispute Resolution].) Arbitrator Harold P. (Peter) Smith entered an Arbitration Award on April 24, 2026, and an Amended Arbitration Award on May 5, 2026, awarding petitioner a total amount of \$828,351.72. (*Id.*, ¶ 8; Attachment 8(c), at pp. 35 & 24, respectively.)

By the deadline for the reply, petitioner modified its requested monetary judgment to account for credits it received against the Amended Arbitration Award in the amount of \$394,283.70 for a new total of \$434,068.02 inclusive of attorney’s fees and costs, and specifying the amount of interest requested as \$20,452.76. (Supp. Sotelo Decl., ¶¶ 4, 6-7, & exh. A [petitioner’s interest calculation]; Proposed Judgment, filed on September 16, 2026.) The updated total requested then would be \$454,520.78.

Petitioner’s counsel declares that:

Following the filing of the Petition, funds were received in partial payment of the Arbitration Award. Specifically, on May 16, 2026, Plaintiff received funds totaling \$394,283.70, by the stipulated release of funds held in a trust account pursuant to a pre-arbitration settlement agreement between Plaintiff and Defendant.

(Supp. Sotelo Decl., ¶ 4.)

Notwithstanding petitioner’s receipt of partial payment, this petition was filed on May 19, 2026. The proof of service captioned in the arbitration proceeding was filed on May 13, 2026, and modified by the Clerk to reflect this court’s case number.

Respondent has not filed any opposition, although he is clearly aware of this hearing. On July 29, 2026, respondent filed a “Status Report Regarding Defendant’s Opposition to Plaintiff’s Motion to Confirm Arbitration Award” (Status Report) informing the court that settlement discussions were in progress, and stating that, “Should the parties be unable to resolve their dispute, Defendant reserves all rights to oppose Plaintiff’s motion on statutory time based on the

Court's September 23, 2026, hearing date." (Status Report, at p. 2:5-7.) The Status Report thus indicates that respondent has waived any defects in notice of the hearing of the petition. If Bradshaw intends his Status Report and failure to oppose the petition to be interpreted otherwise, respondent should properly contest this tentative ruling and appear at the hearing either by Zoom or in person.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, petitioner's counsel shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), which states in part that the "prevailing party on a tentative ruling is required to prepare a proposed order *repeating verbatim the tentative ruling*" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the court.

2:00 PM LINE 2

22-CIV-03785

ROBERT MORRIS VS. ISMAEL BASCO, ET AL

ROBERT MORRIS
ISMAEL BASCO

KENNETH C BROOKS
NICHOLE C BAER

Plaintiff's Motion for a Partial New Trial Pursuant to Code of Civil Procedure § 657

TENTATIVE RULING:

Plaintiff Robert Morris's "Motion for Partial Judgment Notwithstanding the Verdict in Favor of Plaintiff Robert Morris and Against Ismael Basco Pursuant to Civil Code § 629" (Partial JNOV Motion — Ismael Basco); "Motion for Partial Judgment Notwithstanding the Verdict in Favor of Plaintiff Robert Morris and Against Bernice Basco Pursuant to Civil Code § 629" (Partial JNOV Motion — Bernice Basco); and Motion for a Partial New Trial Pursuant to Code of Civil Procedure § 657" (New Trial Motion), are **DENIED**.

A. Background

On February 17, 2022, plaintiff Robert Morris and defendants Ismael Basco and Bernice Basco — who live next door to one another and had a history of low-level conflict regarding, among other things, street parking — got into an altercation. At approximately 7 p.m., Morris was sitting on a retaining wall on the corner of Paramount and Barcelona Avenues in the City of Milbrae. Morris was speaking to members of his two-way ham radio club. The Bascos were walking their golden retriever, Dexter, down Barcelona Avenue to the dog park.

Ismael Basco had Dexter on a four-foot leash. As they passed by Morris, Dexter began to sniff Morris's crotch. Morris, who had been bitten by a dog the year prior, and was afraid of dogs, testified in his deposition that he felt like he was being sexually assaulted by Dexter. Morris used his hand to push Dexter's head away from himself.

Both Morris and Bernice Basco were carrying containers of pepper spray. Morris to protect himself from dogs; and Bernice Basco to protect Dexter from coyotes at the dog park.

When Morris pushed Dexter away from himself, Bernice Basco reacted by pepper spraying him in the face. Morris sprang up and pepper sprayed Ismael Basco and then Morris touched or grabbed Bernice Basco and pepper sprayed her face. Ismael Basco reacted by pushing or shoving Morris away from Bernice Basco.

The following day, Morris walked approximately two miles to an emergency room where he was diagnosed with conjunctivitis, possibly due to chemical exposure. He also had some facial lacerations and a black eye. He was treated and told to return if he had further symptoms.
